

COMPLAINT NUMBER: 2026-0048544

WARRANT NUMBER: GS1109461

PROSECUTOR: Lindsey Anderson

DEFENDANT: Kimberly Whitworth

VICTIM: TJ Maxx

STATE OF TENNESSEE, COUNTY OF DAVIDSON

AFFIDAVIT

Theft of Merchandise- \$1,000 or less

39-14-146*8

Personally appeared before me, the undersigned **[Select one]** ☒ Commissioner ☐ Metropolitan General Sessions Judge, the prosecutor named above and made oath in due form of law that **[Select one]** ☐ he ☒ she **[Select one]** ☐ personally observed ☒ has probable cause to believe that the defendant named above on 01/22/2026 in Davidson County, did knowingly and with the intent to deprive a merchant of the stated price of merchandise **[Select one]** ☒ conceal the merchandise ☒ remove, take possession of, or cause the removal of any merchandise ☐ alter, remove, or transfer any price marking or any other marking that aides in determining value affixed to the merchandise ☐ transfer merchandise from one container to another ☐ cause the cash register or other sales recording device to reflect less than the merchant's stated price ☐ remove, destroy, deactivate, or otherwise evade any component of an anti-shoplifting device or inventory control device to commit or facilitate a theft ☐ use any artifice, instrument, container, device or other article to commit or facilitate a theft ☐ activate or interfere with a fire alarm system to commit or facilitate a theft and the merchandise had a value of: **[Select one]** ☒ \$1,000 or less ☐ more than \$1,000 but less than \$2,500 ☐ \$2,500 or more but less than \$10,000 ☐ \$10,000 or more but less than \$60,000 ☐ \$60,000 or more but less than \$250,000 ☐ \$250,000 or more.

The probable cause is as follows:

On January 22nd, 2026 loss prevention personnel with TJ Maxx located at 1627 Gallatin Pike N in Madison reported a shoplifting to police. Ms. Sharon Bergin advised two females entered the store together. They browsed for several minutes, filling the cart with a variety of what appeared to be children's items. The subjects then went into a back aisle, where subject 1 handed some items for subject 2 to hold so that she could stuff her large purse with multiple items of children's clothing valued at \$170. Both subjects entered the checkout, where they paid for their remaining items. Employees attempted to stop the subjects at the door but both refused to stop and fled into the parking lot. The subjects were identified as Terri Newsom and Kimberly Whitworth, who have been involved in other shoplifting cases. TJ Maxx will prosecute.

ESignature

Prosecutor: Lindsey Anderson 10003527

ARREST WARRANT

Information on oath having been made, that on the day and year aforesaid, and in the County aforesaid, the offense

of Theft of Merchandise- \$1,000 or less A MISD, as aforesaid, has been committed and charging the defendant thereof, you are therefore commanded, in the name of the State, forthwith to arrest and bring the defendant before a judge of the Court of General Sessions of Davidson County, Tennessee, to answer the above charge.

Sworn to and subscribed before me on 04/23/2026 12:23:43 .

Eugenia R. Grayer McGhee

Judge of the Metropolitan General Sessions Court/Commissioner

If the defendant's charge is dismissed, a no true bill is returned by a grand jury, the defendant is arrested and released without being charged with an offense, or the court enters a nolle prosequi in the defendant's case, the defendant is entitled, upon petition by the defendant to the court having jurisdiction over the action, to the removal and destruction of all public records relating to the case without cost to the defendant.

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